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16. APPENDICES – CRITERIA SCHEDULES & CONDITIONS AND PLAN MAPS

The following schedules, conditions and maps form part of this Plan:

1 Exempt Development Criteria

2 Complying Development Criteria

3 Standard Complying Development Conditions

4 Residential Unit Areas

5 North Orange Residential Areas

6 Waratah Estate

7 Ploughmans Valley Area 1 (short term)

Area 2

Area 3

Area 4

WARNING - PLEASE NOTE

The Exempt Development Criteria detailed in Schedule 1 has been **SUPERSEDED** by State Environmental Planning Policy (SEPP) (Exempt & Complying Development Codes) 2008.

Development listed in Schedule 1 is no longer exempt unless specifically listed in the SEPP.

A copy of the SEPP my be downloaded from www.legislation.nsw.gov.au.

16.1 EXEMPT DEVELOPMENT CRITERIA – SCHEDULE 1 - SUPERSEDED

1 ACCESS RAMPS FOR DISABLED

Exempt Development Criteria

1.1	The access ramp has a maximum height of 1 metre above finished ground level.
1.2	The access ramp has a maximum grade of 1:14.
1.3	The ramp is constructed in accordance with AS 1428.1.
1.4	The access ramp is located wholly within the property boundaries.
1.5	The access ramp is not associated with an item of environmental heritage as detailed in Schedule 8 of Orange LEP 2000.
1.6	The design must integrate with the design integrity of the building.

Advisory Note

- Care should be taken with installation of ramps to ensure sub-floor ventilation is not impeded.
- It is recommended that consultation with Council's Design Co-ordinator be carried out with regard to urban design, prior to commencing construction.

2A ADVERTISING STRUCTURES

Business identification sign in rural zones or Zone 7.

Exempt Development Criteria

2.1A	Only one business identification sign is permitted per property.
2.2A	The sign is situated wholly within the land.
2.3A	The sign has a maximum area of 2.5m^2.
2.4A	The sign must not be illuminated.

2B ADVERTISING STRUCTURES

Business identification sign in a residential zone.

Exempt Development Criteria

2.1B	Only one business identification sign is permitted per property.
2.2B	The sign is situated wholly within the land.
2.3B	The sign has a maximum area of 1.0m^2.
2.4B	The sign is not illuminated.
2.5B	The sign is not located on land comprising the site of an item of environmental heritage as detailed in Schedule 8 of Orange LEP 2000.
2.6B	The site is not located on land that is within a heritage conservation area.

SUPERSEDED

2C ADVERTISING STRUCTURES

Business identification sign in a business zone.

Exempt Development Criteria

2C.1 Under Awning Sign

2C.1.1 Only one business identification sign is permitted per property.

2C.1.2 The sign has a maximum area of 1.5m^2.

2C.1.3 The sign is not lower than 2.6m above ground level if suspended above a public road and is set back a minimum of 600mm from the kerb line or the edge of carriageway.

2C.2 Projecting Wall Sign

2C.2.1 Only one business identification sign is permitted per property.

2C.2.2 The sign has a maximum area of 2.5m^2.

2C.2.3 The sign is not lower than 2.6m above ground level if suspended above a public road and is set back a minimum of 600mm from the kerb line or the edge of carriageway.

2C.2.4 The sign is not located on land comprising the site of an item of environmental heritage as detailed in Schedule 8 of Orange LEP 2000.

2C.3 Flush Wall Sign

2C.3.1 Does not exceed 2.5 square metres for the combined area of all flush wall signs on the premises and if projects over a public road is no less than 2.6 metres above ground level.

2C.3.2 The sign is not located on land comprising the site of an item of environmental heritage as detailed in Schedule 8 of Orange LEP 2000.

2D ADVERTISING STRUCTURES

Business identification sign in the Industry and Employment zone.

Exempt Development Criteria

2D.1 Pole or Pylon Sign

2D.1.1 Only one pole or pylon sign (which may include a directory board for multiple occupancies on the land) is permitted per property.

2D.1.2 The sign has a maximum area of 5.0m^2.

2D.1.3 The sign has a maximum height of 4.6m.

2D.1.4 The sign must not obscure sight distance for vehicles entering or leaving the site.

2D.2 Flush-wall Sign

2D.2.1 A flush-wall sign of a multiple occupancy site is not to exceed 2.5m^2 in area.

2D.2.2 A flush-wall sign of a single occupancy site is not to exceed 20% of the area of the front elevation of the building.

2D.2.3 The flush-wall sign must be attached to the relevant industrial building/unit.

2D.3 Projecting-wall Sign

2D.3.1 A projecting-wall sign of a single occupancy site is not to exceed 5m^2 in area.

2D.3.2 The projecting-wall sign must be attached to the relevant industrial building/unit..

2E ADVERTISING STRUCTURES

Business identification sign in rural zones or Zone 7.

Exempt Development Criteria

2E.1 Internal Sign:

2E.1.1 The advertisement and any ancillary structure are not visible from outside the premises on which it is displayed.

2E.1.2 The site does not comprise an item of environmental heritage as detailed in Schedule 8 of Orange LEP 2000.

2E.1.3 The advertisement is behind the glass line of a display window.

SUPERSEDED

2F ADVERTISING STRUCTURES

Other structures.

Exempt Development Criteria

2F.1 Internal Sign

2F.1.1 The advertisement and any ancillary structure are not visible from outside the premises on which it is displayed.

2F.1.2 The site does not comprise an item of environmental heritage as detailed in Schedule 8 of Orange LEP 2000.

2F.1.3 The advertisement is behind the glass line of a display window.

2F.2 Public-information Sign

2F.2.1 Public-information signs are displayed by Council on public or other land with the consent of the owner, or on a public road.

2F.2.2 Public information signs provide information about a service, community event, directions or promotional information about the area.

2F.3 Real-estate Sign

2F.3.1 The advertisement and any ancillary structure together have a maximum area of 2.5m^2 on rural or residential premises.

2F.3.2 The advertisement and any ancillary structure together have a maximum area of 4.5m^2 on commercial or industrial premises.

2F.4 Sportsfield Advertising

2F.4.1 Advertisements are associated with sporting events only.

2F.4.2 Advertisements are located on or adjacent to playing fields.

2F.4.3 Advertisements are orientated towards spectator areas on the land, whether or not the land comprises public land.

2F.4.4 Any ancillary structure of the advertisement must be clear of the playing area.

2F.5 Street Furniture Signs

2F.5.1 Signs are located on a public seat, bus shelter, or garbage bin on a public road only.

2F.5.2 Signs must be displayed in accordance with a contract being executed with Orange City Council.

2F.6 Temporary Signage

2F.6.1 Signage announces a local event approved on the land for a religious, educational, social, cultural or recreational purpose.

2F.6.2 Signage may include a banner on or over a public road erected by or for the Council with the approval of the relevant roads authority.

2F.6.3 Signage does not comprise commercial advertising other than the name or logo of the event's principal sponsor.

2F.7 Traffic Signs

2F.7.1 Signage includes street name signs and directional signs or traffic control signs erected by the Council on a public road in accordance with *AS 1742.2 – 1992 Manual of uniform traffic control devices – general introduction and index of signs.*

2F.7.2 Signs are erected on a public road in accordance with an approved Traffic Control Plan.

SUPERSEDED

3A AIR-CONDITIONING UNIT

For dwelling and multi-unit residential buildings.

Exempt Development Criteria

3A.1 The air-conditioning unit is not located forward of the building line unless wall mounted.

3A.2 The air-conditioning unit is located at least 1.2 metres from any pool-safety fence.

3A.3 The air-conditioning unit will not compromise the structural integrity of the buildings to which it is attached.

3A.4 Any openings created for the purposes of installing the unit is adequately weatherproofed.

3A.5 Noise levels from the unit do not, at any time, exceed the ambient sound pressure levels by 5dB(A) when measured at the boundary of the property.

3A.6 Noise created by the unit is not audible within a habitable room of an adjoining premises.

Advisory Note

- The *Protection of the Environment Operations Act 1997* prohibits the operation of air conditioners between the hours of 10pm and 7am on weekdays and 10pm and 8am on weekends and public holidays.
- Due to noise, it is recommended that air conditioners not be located adjacent to a side boundary or within 6 metres of a habitable room.

3B AIR-CONDITIONING UNIT

For commercial premises and other buildings.

Exempt Development Criteria

3B.1 The air conditioning unit is not visible from any public place.

3B.2 The air conditioning unit is not located forward of the building line.

3B.3 Noise levels from the unit are not, at any time, audible within a habitable room of an adjoining premises.

3B.4 Noise levels from the unit do not, at any time, exceed the ambient sound pressure levels by 5dB(A) when measured at the boundary of the property.

3B.5 The air conditioning unit will not compromise the structural integrity of the building to which it is attached.

3B.6 Any openings created for the purposes of installing the unit is adequately weatherproofed.

3B.7 Does not include a cooling tower.

Advisory Note

- The *Protection of the Environment Operations Act 1997*, prohibits the operation of air conditioners between the hours of 10pm and 7am on weekdays and 10pm and 8am on weekends and public holidays.
- Strata allotment owners should obtain approval from the Body Corporate/Owners Corporation for the installation works where required.

4A AERIALS/ANTENNAE

Aerials/Antennae.

Exempt Development Criteria

4A.1 At the highest point, the aerials/antennae are not in excess of 3.0m higher than the roof ridge.

Advisory Note

- See also Clause 4B '*Aerials/Antennae – Microwave Antennae*' and Clause 4C '*Aerials/Antennae – Satellite Dishes*'.

SUPERSEDED

4B AERIALS/ANTENNAE

Microwave Antennae (ie for Pay TV).

Exempt Development Criteria

4B.1 Microwave antennae are either roof or wall mounted.

4B.2 Reflectors do not exceed 600mm diameter.

4B.3 At the highest point, the microwave antennae is not in excess of 1.5m higher than the roof ridge of the dwelling to which it is fixed.

Advisory Note

- See also Clause 4A '*Aerials/Antennae*' and Clause 4C *'Aerials/Antennae – Satellite Dishes*'.

4C AERIALS/ANTENNAE

Satellite Dishes.

Exempt Development Criteria

4C.1 A maximum of one satellite dish per dwelling.

4C.2 The satellite dish is not visible from a public place in heritage conservation areas.

4C.3 The dish does not exceed 900mm diameter in residential zones.

4C.4 The dish does not exceed 2m in diameter in zones other than residential zones and is not visible from a public place.

Advisory Note

- See also Clause 4A '*Aerials/Antennae*' and Clause 4B '*Aerials/Antennae – Microwave Antennae*'.

5A ALTERATIONS

Internal Alterations to Dwellings.

Exempt Development Criteria

5A.1 Alterations are conducted in single dwellings.

5A.2 Alterations do not affect the load-bearing capacity of any load-bearing component of the building.

5A.3 Alteration work includes replacement of doors and windows, painting, construction or removal of non-structural walls, ceiling linings, floor linings, deteriorated frame members with materials of equivalent or greater quality than those being replaced, renovations to bathrooms and kitchens, including the addition of vanities, cupboards, wardrobes and other fixed storage spaces and general maintenance works.

5A.4 Alterations do not alter the floor space of the dwelling.

5A.5 Alterations do not alter the amount of light or natural ventilation into the dwelling.

5A.6 Alterations do not alter the dwelling's compliance with any BASIX Certificate(s) or Council's Energy Smart Homes policy applicable to the dwelling.

5A.7 Alteration works do not interfere with the neighbourhood having regard to noise, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, grit or oil.

5A.8 Alteration works involving the removal of asbestos, asbestos cement or lead-based paint comply with the requirements of NSW WorkCover Authority.

5A.9 All lead- and asbestos-contaminated material must be disposed of in accordance with the requirements of the NSW Department of Environment and Conservation

Advisory Note

- Some alterations that are not exempt development may be considered to be Complying Development. (See *Schedule 1 – Complying Development Criteria*.)

SUPERSEDED

5B ALTERATIONS

External alterations to dwellings.

Exempt Development Criteria

5B.1 The dwelling house being altered is not an item of environmental heritage as detailed in Schedule 8 of Orange LEP.

5B.2 Alterations are compatible with the visual character of the area.

5B.3 Alterations are conducted on a single dwelling.

5B.4 Alterations are non-structural changes and do not affect the stability of the dwelling.

5B.5 Alterations involve work of the following nature: painting, plastering, rendering, bagging, cladding, attachment of fittings or decorative work and general maintenance works.

5B.6 Excludes the alteration of external material type of a dwelling (such as rendering or bagging an exposed brick dwelling) that is located within a heritage conservation area.

5B.7 Alterations do not result in the alteration of the floor space of the dwelling.

5B.8 Alterations do not alter the dwelling's compliance with any BASIX Certificate(s) or Council's Energy Smart Homes policy applicable to the dwelling.

5B.9 Any work involving the removal of asbestos, asbestos cement or lead-based paint complies with the requirements of NSW WorkCover Authority and do not contaminate the air, soil or surrounding lands.

5B.10 All lead- and asbestos-contaminated material is disposed of in accordance with the requirements of the NSW Department of Environment and Conservation.

5B.11 Alteration works do not interfere with the neighbourhood having regard to noise, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, grit or oil.

5B.12 Where the building to be altered is located within a bushfire-prone area, any new fittings are to be of non-combustible materials and are to be constructed and installed in accordance with Australian Standard AS3959 and *Planning for Bushfire Protection*.

Advisory Note

- It is recommended that consultation with Council's Design Co-ordinator be carried out with regard to urban design, prior to commencing construction.
- This type of exempt development relates to general maintenance works to the external façade of a dwelling. Some alterations that are not exempt development may be considered to be Complying Development. (See *Schedule 1 – Complying Development Criteria*.)
- Particular care should be taken to ensure any works do not result in a non-compliance with the Building Code of Australia, particularly in regard to light and ventilation.

5C ALTERATIONS

Internal and External Alterations to all other classes of buildings.

Exempt Development Criteria

5C.1 Alterations do not affect the load-bearing capacity of any load-bearing component of the building.

5C.2 Alterations involve work of the following nature: replacement of doors and windows, non-structural walls, ceiling linings, floor linings, deteriorated frame members with materials of equivalent or greater quality than those being replaced, renovations to sanitary facilities and kitchens, including the addition of vanities, equipment, partitions, cupboards, shelving, benches, and other fixed storage spaces, the fitting of security screens, painting, plastering, rendering, bagging, cladding, attachment of fittings or decorative work and general maintenance works.

5C.3 Alterations do not alter the floor space and footprint of the building.

5C.4 Alterations do not alter the building's compliance with any BASIX Certificate(s) applicable to the building.

5C.5 Any work involving the removal of asbestos, asbestos cement or lead-based paint complies with the requirements of NSW WorkCover Authority.

5C.6 All lead- and asbestos-contaminated material is disposed of in accordance with the requirements of the NSW Department of Environment and Conservation.

5C.7 Alteration works do not interfere with the neighbourhood having regard to noise, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, grit or oil.

SUPERSEDED

5C ALTERATIONS

Internal and External Alterations to all other classes of buildings.

Exempt Development Criteria

5C.8 Any alterations to Trade Waste components of the development comply with Council's Trade Waste requirements.

5C.9 Where the building to be altered is located within a bushfire-prone area, any new external fittings are to be of non-combustible materials and are to be constructed and installed in accordance with Australian Standard AS3959 and *Planning for Bushfire Protection*.

Advisory Note

- It is recommended that consultation with Council's Design Co-ordinator be carried out with regard to urban design, prior to commencing construction.
- Applicants should contact Council's Trade Waste Officer to discuss any alterations to a building that impact on, or alter the disposal of Trade Waste from the building.
- Particular care should be taken to ensure any works do not result in a non-compliance with the Building Code of Australia, particularly in regard to fire safety.

6 ANIMAL ENCLOSURES

Companion/domestic pet enclosures.

Exempt Development Criteria

6.1 Enclosures have a maximum floor area of 10m^2.

6.2 Enclosures have a maximum height of 1.8 metres above ground level.

6.3 Enclosures have a minimum width of 1.8 metres.

6.4 Enclosures are located a minimum of 10 metres from any adjacent dwelling.

6.5 Enclosures are located in the rear yard and screened from any public place.

6.6 Enclosures have a graded concrete floor, designed and located so as to ensure that all wash-down waste removed from the structure is contained wholly within the subject property.

6.8 Construction and use of the enclosure is not to interfere with the neighbourhood having regard to noise, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, grit or oil.

6.9 The enclosure may include a warning sign prescribed by the *Companion Animals Act 1998* and Regulations.

7 AWNINGS, CANOPIES AND STORMBLINDS

Exempt Development Criteria

7.1 Awnings, canopies and stormblinds have a maximum area of 10m^2.

7.2 Awnings, canopies and stormblinds are located wholly within the property boundary.

7.3 Awnings, canopies and stormblinds are located behind the building line.

7.4 Awnings, canopies and stormblinds have a minimum side and rear boundary setback of 900mm.

7.5 Awnings, canopies and stormblinds are not located on the front façade of a heritage item and are reasonably obscured from view of a public place

8 BALCONIES

(See Clause 22 '*Decks*'.)

9 BANNERS

(See Clause 2 '*Advertising Structures*'.)

SUPERSEDED

10 BASKETBALL HOOPS

Exempt Development Criteria

10.1 Basketball hoops are installed in accordance with the manufacturer's specifications.

10.2 The erection and use of the hoop(s) is not to interfere with the neighbourhood having regard to noise and vibration.

11A BARBEQUES

On Council Land.

Exempt Development Criteria

12A.1 Barbeques are established by or on behalf of Council on Council-managed land for Council purposes.

Advisory Note

- Excludes any shelter over the barbeque structure.

11B BARBEQUES

On Residential Land.

Exempt Development Criteria

12B.1 A maximum of one (1) barbeque (fixed) is constructed per property.

12B.2 The barbeque is located wholly within the property boundaries.

12B.3 The barbeque is located behind the building line.

12B.4 The barbeque has a maximum chimney height of 2.4 metres.

12 BIRD AVIARIES AND FOWL HOUSES

Exempt Development Criteria

13.1 Aviaries/fowl houses have a maximum floor area of $10m^2$.

13.2 Aviaries/fowl houses have a maximum height of 2.4 metres.

13.3 Aviaries/fowl houses are located in the rear yard of the property.

13.4 A maximum of one aviary or fowl house is constructed per residential property.

13.5 The floor of the roosting area must be of concrete appropriately drained for cleaning.

13.6 Aviaries/fowl houses are to be located not less than 12 metres from a residential dwelling house.

13.7 Aviaries/fowl houses are designed and located so as to ensure that all wash-down waste removed from the structure is contained within the subject property.

Advisory Note

- See also 6 '*Animal Enclosures*'.

SUPERSEDED

13 BOLLARDS

Exempt Development Criteria

14.1 Bollards are installed in accordance with the manufacturer's specifications.

14.2 Bollards are located wholly on the subject property.

14 BRIDGES

Exempt Development Criteria

11.1 Bridges are constructed by or on behalf of Council in a public park or recreational space.

11.2 Bridges are installed and maintained in accordance with an adopted Plan of Management for the subject land.

11.3 Bridges have a span of no greater than 5 metres between abutments.

11.4 Bridges are designed, fabricated and installed in accordance with the *Building Code of Australia*.

11.5 Bridges constructed of steel are designed, fabricated and installed in accordance with Australian Standard AS4100.

11.6 Bridges constructed of timber are designed, fabricated and installed in accordance with Australian Standard AS1720.

15 CABANA, GREENHOUSE OR GAZEBO

(See Clause 44A and Clause 48A '*Sheds*'.)

16 CARPORT

Exempt Development Criteria

16.1 The carport has a maximum floor area of 20m^2.

16.2 The carport is erected behind the building line.

16.3 The carport is located a minimum of 900mm from a boundary.

16.4 Roofwater from the structure must be connected to the existing stormwater drainage system of the dwelling house.

Advisory Note

- Care should be taken to ensure appropriate carports are designed and constructed to allow for snow loading.

17 CHANGE OF USE

Exempt Development Criteria

17.1 The new use is consistent with the classification of the building under the *Building Code of Australia* and replaces a former lawful use.

17.2 The new use is not actually or potentially a hazardous or offensive industry.

17.3 The new use does not involve the preparation of food for sale or consumption unless a former lawful use involved the preparation of food for sale or consumption.

17.4 The new use is not a *prohibited use*.

17.5 The new use does not include the use of the building as a brothel or for the sale of articles that are primarily concerned with sexual behaviour.

17.6 Where the former use is carried out in accordance with a development consent, the new use complies with the development consent.

17.7 Written notice is provided to the Council at least 5 days prior to the commencement of the new use of the building.

17.8 The new use results from a change of building use from a shop, business premises or an office to another office, business premises or shop in Zone 3(a) or 3(b) that is not in the business of preparing food for sale by consumption where:

17.8.1 The new use does not involve a change in the use of more than 500m^2 of floor space.

17.9 The new use results from a change of building use from an industry to light industry or a warehouse or from a warehouse to a light industry in Zone 4 where:

17.9.1 The new use does not involve a change in the use of more than 2,000m^2 of floor space.

17.10 The new use results from a change of building use for a business purpose, boarding house, residential units, group home or dual occupancy to a dwelling house where:

17.10.1 The building is situated in a residential or business zone.

17.10.2 The building was originally established and used as a dwelling house.

SUPERSEDED

17 CHANGE OF USE

17.10.3 Any alterations or demolition are also exempt development in accordance with this DCP.

Advisory Note

- Refer to Clause 86 of the Orange LEP 2000 regarding definitions of different uses.

18A CHILDREN'S PLAY EQUIPMENT

On Private Property.

Exempt Development Criteria

18A.1 Play equipment is free standing.

18A.2 Structures and associated works, such as borders and soft-fall when installed, are erected and installed in accordance with the manufacturer's specifications and instructions.

18A.3 Play equipment occupies a maximum area of 15m^2, including any softfall area.

18A.4 Play equipment has a maximum height of 2.4m.

18A.5 Play equipment is not located forward of the building line or within the setback to a secondary street frontage.

18A.6 Play equipment is located not less than 3 metres from any dwelling on an adjoining property.

18A.7 Play equipment is located such that no disturbance to the amenity of residents at adjoining properties results as a result of the construction or use of the equipment.

Advisory Note

- See also Clause 20 '*Cubby House*'.

18B CHILDREN'S PLAY EQUIPMENT

In a Public Park, Recreation Space or Road Reserve.

Exempt Development Criteria

18B.1 Play equipment is established by or on behalf of Council on Council-managed land for Council purposes.

18B.2 Play equipment is installed in accordance with the manufacturer's specifications.

19 CLOTHING RECYCLING BIN

Exempt Development Criteria

19.1 The clothing bin is not located on public land.

19.2 A maintenance schedule must be in place to ensure the bin and adjacent areas are kept clean and tidy.

19.3 The clothing bin must not impede the flow of pedestrian or vehicular traffic.

20 CUBBY HOUSE

Exempt Development Criteria

20.1 The cubby house is associated with an existing residential use of land.

20.2 The cubby house has a maximum area of 10m^2.

20.3 The cubby house has a maximum height 2.5m above adjacent ground level.

20.4 The cubby house is located minimum of 500mm from side or rear property boundaries.

20.5 The cubby house is located behind the existing building line.

Advisory Note

- See also Clause 18A and Clause 18B '*Children's Play Equipment*'

21 CLOTHES LINE

Exempt Development Criteria

21.1 The clothes line is not located forward of the building line and is reasonably obscured from view from a public place.

21.2 The clothes line is installed in accordance with the manufacturer's specifications.

22 DECK (UNROOFED & ROOFED)

SUPERSEDED

22 DECK (UNROOFED & ROOFED)

Exempt Development Criteria

22.1 Where erected in a residential zone, the building site coverage of the property on which it is erected does not exceed 60% after its erection.

22.2 The property on which the deck is to be located is not an item of environmental heritage as detailed in Schedule 8 of Orange LEP 2000.

22.3 The deck is located behind the building line.

22.4 The deck is located a minimum of 900mm from any property boundary.

22.5 Decks that allow an outlook to a window within a habitable room of a neighbouring house within 6m are to have a privacy screen installed opposite the window and this privacy screen is to have a minimum height of 1.5m above the floor level of the deck in order to limit over-viewing of the window.

22.6 The deck has a maximum total area of $10m^2$.

22.7 The deck has a maximum floor level of 1,000mm above ground level.

22.8 The deck is attached to an existing dwelling.

22.9 When covered with a roof, roofwater from the structure must be connected to the existing stormwater drainage system of the dwelling house.

22.10 Any roof structure over the deck (or patio area) has a maximum height of 3.0m above floor level.

22.11 The deck must not be enclosed by walls.

22.12 If located in a bushfire prone area, the deck must comply with Australian Standard AS3959 and *Planning for Bushfire Protection*.

Advisory Note

- Care should be taken to ensure appropriate carports are designed and constructed to allow for snow loading.

23 EMERGENCY WORKS

(relating to safety to life and/or to protect the environment).

Exempt Development Criteria

23.1 Carried out by or on behalf of Council, a State agency or an utility authority or provider.

24 FENCES (URBAN) – EXCLUDING FENCES COVERED BY THE *SWIMMING POOLS ACT 1992* (INCLUDING GATES AND BOOM GATES

Exempt Development Criteria

24.1 Fences Generally

24.1.1 Fences are to be constructed so that the fence does not prevent the natural flow of stormwater drainage/runoff.

24.1.2 Excludes barbed wire or second-hand corrugated iron in urban areas.

24.2 Front Fence (Non Masonry)

24.2.1 Fence has a maximum height of 1.2m.

24.2.2 Front fences must be constructed of material consistent with the streetscape character.

24.2.3 In heritage conservation areas, front fences identified as being inappropriate on a Heritage Inventory Sheet in the *Orange Heritage Study* are only be replaced by fences consistent with the period style of the building.

24.3 Boundary Fences

24.3.1 Side Fences (between the building line and the street):

24.3.1.1 Consistent with the *Dividing Fences Act 1991*.

24.3.1.2 Maximum height of 1.2m.

Exempt Development Criteria

24.3.2 Side Fences (between the building line and the rear boundary) and rear boundary fences:

24.3.2.1 Maximum height of 1.8m if constructed of timber, metal or lightweight materials.

24.3.2.2 In heritage conservation areas, timber paling fences are preferred, otherwise dark shades of Colorbond behind the building line are permitted.

SUPERSEDED

24 FENCES (URBAN) – EXCLUDING FENCES COVERED BY THE *SWIMMING POOLS ACT 1992* (INCLUDING GATES AND BOOM GATES

24.3.2.3 Fences erected on a street frontage within heritage conservation areas must be constructed of timber palings.

24.4 Masonry or Brick Fences

24.4.1 The brick or masonry fence complies with Australian Standard *AS 3700 – Masonry Code.*

24.4.2 The brick or masonry fence complies with Australian Standard *AS 3600 – Concrete Structures.*

24.4.3 The brick or masonry fence has a maximum height of 1.0m above ground level within the front setback area of the allotment and 1.8m elsewhere.

24.5 Security Fences for Public Utility Undertakings

24.5.1 Chain-wire-type fences and gates around a public-utility undertaking are to have a maximum height of 2.4m.

25 FLAG POLE

Exempt Development Criteria

25.1 The flag pole is located wholly within the land.

25.2 Not more than one flag pole is established on any property.

25.3 The flag pole has a maximum height of 6m above ground level.

25.4 The flag pole must be structurally adequate.

25.5 The flag pole must installed in accordance with the manufacturer's specifications.

25.6 The installation of the flag pole does not result in a noise nuisance.

26 GARAGE SALE

Exempt Development Criteria

26.1 The garage sale is associated with the existing residential use of land.

26.2 A maximum of 2 garage sales are carried out on the residential premises in any one calendar year.

26.3 Garage sales must be conducted during daylight hours.

26.4 No goods, items, signs or the like are to be placed upon any public place.

27 GARDEN SHEDS & GAZEBOS

(See Clause 48A and Clause 44A '*Sheds*'.)

28 GOAL POSTS

(See Clause 51 '*Sporting and Recreation Structures and Equipment*'.)

SUPERSEDED

29A HOME BUSINESS

Home occupation.

Exempt Development Criteria

29A.1 Involves the use of a dwelling by the permanent resident that does not:

29A.1.1 involve a shop or a brothel, or

29A.1.2 cause any interference to the amenity of the locality.

29A.2 Involves the use of an existing lawful dwelling.

Advisory Note

- Applicants should contact Council's Trade Waste Officer to discuss whether or not the Home Occupation use requires a separate Trade Waste Approval.
- See also Clause 2B '*Advertising Structure - Business Identification Sign in a Residential Area*'

29B HOME BUSINESS

Home-based child care service.

Exempt Development Criteria

29B.1 Involves the use of an existing lawful dwelling.

29B.2 The child-care service is carried out in a dwelling house by a carer licensed by the Department of Community Services.

Advisory Note

- Applicants should contact Council's Trade Waste Officer to discuss whether or not the Home Occupation use requires a separate Trade Waste Approval.
- See also Clause 2B '*Advertising Structure - Business Identification Sign in a Residential Area*'.

29C HOME BUSINESS

Bed and breakfast accommodation.

Exempt Development Criteria

29C.1 Involves the use of an existing lawful dwelling.

29C.2 Only one bedroom is provided for a maximum of 4 paying guests.

Advisory Note

- Applicants should contact Council's Trade Waste Officer to discuss whether or not the Home Occupation use requires a separate Trade Waste Approval.
- See also Clause 2B '*Advertising Structure - Business Identification Sign in a Residential Area*'.

29D HOME BUSINESS

Serviced apartment/holiday letting.

Exempt Development Criteria

29D.1 Involves the use of an existing lawful dwelling

29D.2 Comprises one serviced apartment for each dwelling.

29D.3 The apartment is to be serviced between the hours of 7.00 am and 7.00 pm on any day.

29D.4 The apartment may include the use of a sign which is exempt development for the land under this DCP.

Advisory Note

- Applicants should contact Council's Trade Waste Officer to discuss whether or not the Home Occupation use requires a separate Trade Waste Approval.
- See also Clause 2B '*Advertising Structure - Business Identification Sign in a Residential Area*'

SUPERSEDED

29E HOME BUSINESS

Home business involving the sale of fruit, vegetables or flowers.

Exempt Development Criteria

29E.1 Use of an existing lawful dwelling

29E.2 The fruit, vegetables or flowers are grown in association with and ancillary to use of a dwelling house primarily for domestic use, provided that:

a the use does not involve erection of a structure in front of the building line

b does not affect traffic movement in the area.

29E.3 May include the use of a sign which is exempt development for the land under another provision of this DCP.

Advisory Note

- Applicants should contact Council's Trade Waste Officer to discuss whether or not the Home Occupation use requires a separate Trade Waste Approval.
- See also Clause 2B '*Advertising Structure - Business Identification Sign in a Residential Area*'

30A LANDSCAPE WORKS

Landscape works on privately-owned land.

Exempt Development Criteria

30A.1 Landscape works do not involve the removal of, or damage to, any tree or landscape feature listed in Council's *Survey of Significant Landscape Features*.

30A.2 Where undertaken in a residential zone, landscape works will not result in the built-upon area of the property on which they are undertaken exceeding 60% after completion of the works or, if the built-upon area prior to undertaking the works is greater than 60%, the built-upon area at the property is not increased as a result of the works.

30A.3 No declared noxious weeds are established on the land during the works.

30A.4 There is no light spill to neighbouring properties from any garden lighting installed.

30A.5 Compliance with the *Protection of the Environment Operations Act 1997* in regards to the times during which articles may be used.

30A.6 Landscaping works must not prevent the natural flow of stormwater drainage/runoff.

30A.7 Any fill used is clean or is sourced from the property on which the works are undertaken.

30A.8 Landscaping materials that may migrate during rain events must not be used on the site, particularly in areas adjacent to inter-allotment drainage pits and on-site detention systems.

Advisory Note

- See also Clause 35A '*Paving*', Clause 43 '*Retaining Walls*', Clause 56 '*Water Features*' and Clause 33 '*Lighting*'

30B LANDSCAPE WORKS

Landscape works on Council-owned land.

Exempt Development Criteria

30B.1 Landscape works do not involve the removal of, or damage to, any tree or landscape feature listed in Council's *Survey of Significant Landscape Features*.

30B.2 Landscape works are carried out by or on behalf of Council on Council managed land for Council purposes.

30B.3 Landscape works are carried out in accordance with an adopted Plan of Management for the subject land.

Advisory Note

- See also Clause 35A '*Paving*', Clause 43 '*Retaining Walls*', Clause 56 '*Water Features*' and Clause 33 '*Lighting*'

SUPERSEDED

31 LETTER BOX

Exempt Development Criteria

31.1 The letter box must not measure more than 1.2 metres at any point above existing ground level.

31.2 The letter box is located wholly within the boundaries of the allotment.

31.3 A sufficient number of boxes are installed in order to provide one for each dwelling or business.

31.3 The letter box(es) are located adjacent to the driveway and clear of the formed carriage way and verge of a public road in rural areas.

31.4 The letter box(es) are consistent with streetscape character.

31.5 The number of the dwelling, including any unit number, is affixed to the letter box.

32A LIGHTING

On Council Land and Buildings.

Exempt Development Criteria

32A.1 Lighting is erected by or on behalf of Council on Council-managed land for Council purposes.

32A.2 Lighting is not designed to be used for lighting of playing fields.

32A.3 Lighting is located and/or shielded so as not to cause light spill to habitable rooms of adjoining premises.

Advisory Note

- See also Clause 30B '*Landscape Works*'.

32B LIGHTING

On Other Land and Buildings.

Exempt Development Criteria

32B.1 Lighting is located and/or shielded so as not to cause light spill to habitable rooms of adjoining premises.

Advisory Note

- See also Clause 30B '*Landscape Works*' for lighting in residential gardens.

33 PATIOS

(See also Clause 22 '*Decks*'.)

34A PAVING

On Private Property.

Exempt Development Criteria

34A.1 At least 50% of the area between the building line and the front boundary is to be retained for lawns and garden.

34A.2 No stormwater is to be directed to neighbouring properties as a result of the paving.

34A.4 Existing stormwater-drainage systems are of adequate capacity to handle the additional stormwater discharged from the paved area.

34A.5 The level of fill placed at any point on the site does not exceed 900mm above existing ground level.

34B PAVING

On Council-owned Land.

Exempt Development Criteria

34B.1 Paving is established on land that is managed by Council in accordance with a Plan of Management.

34B.2 Paving is established by or on behalf of Council on Council-managed land for Council purposes.

SUPERSEDED

35 PERGOLA

(See Clause 22 '*Decks*'.)

36 PLAYGROUND EQUIPMENT

(See Clause 18A and Clause 18B '*Children's Play Equipment*'.)

37 PONDS

(See Clause 56 '*Water Features*'.)

38 PRIVACY SCREEN

Exempt Development Criteria

38.1	The property on which the privacy screen(s) is/are erected is not a heritage item.
38.2	No privacy screens are located forward of the building line.
38.3	Privacy screens are not more than 2.1 metres in height above adjacent ground level.
38.4	Privacy screens are located a minimum of 900mm from any property boundary, with the exception of lattice-type material fitted to the top of an existing side or rear boundary fence.
38.5	Privacy screens are constructed of light-weight materials.
38.6	Privacy screens are of structurally adequate construction.
38.7	Privacy screens have a maximum aggregate length 10m of free-standing screen.
38.8	If erected within a bushfire-prone area, screens are to comply with the provisions of Australian Standard AS3959 and *Planning for Bushfire Protection*.
38.9	Landscaping is to be employed at or around the privacy screen in order to soften its appearance.
38.10	Privacy screens are to be reasonably obscured from a public place.

39 PUBLIC MEETINGS

Exempt Development Criteria

39.1	Meetings are conducted in a Class 9b building, being a building of a public nature, as defined by the *Building Code of Australia*.
39.2	Meetings do not contravene any condition imposed on the building or property as a condition of development consent.
39.3	Meetings do not cause interference with the neighbourhood because the meetings are noisy, cause vibrations or create smells, fumes, smoke, vapour, steam, soot, ash, dust, waste water, grit or oil.

40A RAINWATER TANK

On Residential Land.

Exempt Development Criteria

40A.1	The rainwater tank is to be installed in accordance with the manufacturer's specifications.
40A.2	The rainwater tank is to be structurally sound.
40A.3	The rainwater tank is to have a maximum capacity of 10,000 litres.
40A.4	Overflow of excess stormwater is conveyed to an approved stormwater drainage system.
40A.5	Where interconnection with potable town-water supply is proposed, a separate approval under the *Local Government Act 1993* must be obtained from Council, prior to any works commencing.
40A.6	The rainwater tank is to have a maximum height of 3.0 metres above existing ground level.
40A.7	The rainwater tank is to be located a minimum of 1.0 metre from a side or rear boundary.
40A.8	The rainwater tank is not to be located between the building line and the front boundary.

SUPERSEDED

40B RAINWATER TANK

On Rural and Rural Residential Land.

Exempt Development Criteria

40B.1 The rain water tank is to be installed in accordance with the manufacturer's specifications.

40B.2 The rainwater tank is to be structurally sound.

40B.3 Overflow of excess stormwater is to be conveyed to an appropriate disposal point clear of other structures and is not to impact on the health and amenity of the building occupants or any neighbours.

40B.4 The rainwater tank is to be located behind the existing building line.

40B.5 The rainwater tank is to be located a minimum of 3.0 metres from a side or rear boundary.

40B.6 Any excavation for an in-ground storage tank must not compromise the structural integrity of any adjacent building or structure.

40B.7 Where possible, vehicular access and Rural Fire Service-compatible connection points are to be provided to the tank.

40C RAINWATER TANK

On Other Land.

Exempt Development Criteria

40C.1 The rainwater tank is to be installed in accordance with the manufacturer's specifications.

40C.2 The rainwater tank is to be structurally sound.

40C.3 Overflow of excess stormwater is to be conveyed to an approved stormwater drainage system.

40C.4 Where interconnection with potable town water supply is proposed, a separate approval under the *Local Government Act 1993* must be obtained from Council, prior to any works commencing.

40C.5 The rainwater tank is to be located a minimum of 1.0m from a side or rear boundary.

40C.6 The rainwater tank is not to be located between the building line and the front boundary.

41 RECLADDING ROOF AND WALLS

Exempt Development Criteria

41.1 Excludes the recladding of an item of environmental heritage, as detailed in Schedule 8 of Orange LEP 2000.

41.2 Works involve only the replacement of existing materials with similar materials.

41.3 The finished appearance of the building is compatible with the existing building and finish.

41.4 Any work involving the removal of asbestos, asbestos cement or lead-based paint is to comply fully with any of NSW WorkCover requirements.

41.5 Works do not interfere with the neighbourhood having regard to noise, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, grit or oil.

41.6 All lead- and asbestos-contaminated material is disposed of in accordance with the requirements of the NSW Department of Environment and Conservation.

Advisory Note

- See also Clause 5A, Clause 5B and Clause 5C '*Alterations*'
- It is recommended that consultation with Council's Design Co-ordinator be carried out with regard to urban design, prior to the commencement of works.

42 RETAINING WALL

Exempt Development Criteria

42.1 Retaining walls are to have a maximum height of 900mm.

42.2 Masonry walls are to comply with AS 3700 – Masonry Code, AS 3600 – Concrete Structures and AS1170 – Loading Code.

42.3 Timber walls are to comply with AS 1720 – Timber Structures, AS 1170 – Loading Code.

42.4 All retaining walls are to be constructed so that they do not prevent the natural flow of surface water.

42.5 All cuttings must be appropriately supported until the retaining wall is completed.

SUPERSEDED

43A RURAL STRUCTURES (MISCELLANEOUS)

Outbuildings (such as machinery sheds, fuel sheds, dairies, haysheds, stables and barns).

Exempt Development Criteria

43A.1	On land located within Zone 1(a) or Zone 7 that is used in association with agriculture only.
43A.2	The structure is set back at least 50m from a public roadway or behind the rear building line of any dwelling house on the land, whichever is the lesser.
43A.3	The structure is located not less than 10m from any boundary.
43A.4	The structure has a maximum floor area of 200m^2.
43A.5	The floor level of the structure is not greater than 1m above the natural ground level.
43A.6	The height of the structure does not exceed 10m.
43A.7	Any spillage from chemicals or fuel stored within the structure will be caught by an adequately-sized bund.
43A.8	Works do not interfere with the neighbourhood having regard to noise, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, grit or oil.

Advisory Note

- Care should be taken to ensure the proposed structures are designed and constructed to allow for snow loading.

43B RURAL STRUCTURES (MISCELLANEOUS)

Wind generators.

Exempt Development Criteria

43B.1	On land located within Zone 1(a) or Zone 7.
43B.2	The wind generator is to have a maximum diameter of 2 metres.
43B.3	The wind generator is to have a maximum height of 6 metres;
43B.4	The wind generator must be located below the hilltop ridgeline, when viewed from adjacent public places.
43B.5	Only one wind generator may be erected per premises.

43C RURAL STRUCTURES (MISCELLANEOUS)

Stock yards.

Exempt Development Criteria

43C.1	Stock yards are located on land within Zone 1(a) or Zone 7.
43C.2	Vehicles loading/unloading stock are to be contained wholly within the land.
43C.3	Stock yards do not include works or buildings for chemical treatment of stock, such as dips and the like.

43D RURAL STRUCTURES (MISCELLANEOUS)

Structures for feeding stock.

Exempt Development Criteria

43D.1	Excludes structures that have roofs or are enclosed or that otherwise contain animals within the structure.
43D.2	Structures are not to exceed 2.4m in height.

43G RURAL STRUCTURES (MISCELLANEOUS)

Structures associated with licensed irrigation works.

Exempt Development Criteria

43G.1	On land located within Zone 1(a) or Zone 7.
43G.2	Pumps are not to cause a nuisance to people on surrounding land from emission of noise, fumes or runoff.
43G.3	Exempt structures and works are do not include dams or reservoirs.
43G.4	Where required, works are licensed in accordance with the *Water Act*.

SUPERSEDED

43E RURAL STRUCTURES (MISCELLANEOUS)

Fences and Gates.

(See Clause 24 '*Fences*'.)

43F RURAL STRUCTURES (MISCELLANEOUS)

Grain Silos.

Exempt Development Criteria

43F.1 Restricted to lands located within Zone 1(a) or Zone 7.

43F.2 Silos do not exceed 6m in height.

43F.3 Unless they are located within close proximity or are attached to other farm buildings, silos must not be visible from public places in the vicinity.

Advisory Note

- Care should be taken to ensure the proposed structures are designed and constructed to allow for snow loading.

43G RURAL STRUCTURES (MISCELLANEOUS)

Alterations to outbuildings

Exempt Development Criteria

43G.1 Includes internal portioning of farm buildings but not the removal or relocation of load-bearing walls.

43H RURAL STRUCTURES (MISCELLANEOUS)

Hail/Bird Netting.

Exempt Development Criteria

43H.1 Restricted to lands located within Zone 1(a) and Zone 7 that are used in association with agriculture only.

43H.2 Hail/bird netting is only to be used in association with orchards or vineyards.

43H.4 When located with the Scenic Protection Area, the colour is to blend with the landscape.

44 SATELLITE DISH

(See Clause 4C '*Aerials/Antennae – Satellite Dishes*'.)

45 SCAFFOLDING

Exempt Development Criteria

45.1 Scaffolding is to be temporary.

45.2 Scaffolding is not to be located on Council's footpath or a public thoroughfare, unless a hoarding approval has been obtained from Council under the *Local Government Act 1993*.

45.3 Scaffolding does not encroach onto any adjoining property unless written permission has been obtained from the owner and resident of the affected adjoining property.

45.4 Scaffolding is structurally sound.

45.5 Scaffolding is erected in accordance with the requirements of NSW WorkCover.

SUPERSEDED

46A SHADE STRUCTURE

Residential.

Exempt Development Criteria

46A.1 Shade structures are to have a maximum area of 20m^2.

46A.2 The built-upon area of the site does not exceed 60% after the erection of the shade structure.

46A.3 The property on which the shade structure is located is not listed as an item of environmental heritage as detailed in Schedule 8 of Orange LEP.

46A.4 Shade structures are not located forward of the building line.

46A.5 Shade structures are located at least 1 metre from any property boundary.

46A.6 Shade structures are to have a maximum height of 2.5 metres at any one point.

46A.7 Shade structures are to be installed in accordance with the manufacturer's specifications and instructions.

46A.8 If erected in a bushfire-prone area, the shade structure complies with the requirements of Australian Standard AS3959 and *Planning for Bushfire Protection*.

46B SHADE STRUCTURE

Other than Residential.

Exempt Development Criteria

46B.1 Shade structures are constructed at the site of an educational establishment, childcare centre, Council-managed park or recreational area.

46B.2 Where installed on Council0managed park or recreation areas, the shade structure is installed and maintained in accordance with any relevant adopted Council Plan of Management.

46B.3 The built-upon area for the site does not exceed the maximum permissible under Orange LEP 2000.

46B.4 The shade structures are to be installed in accordance with the manufacturer's specifications and instructions.

46B.5 If erected in a bushfire prone area, the shade structure complies with the requirements of Australian Standard AS3959 and *Planning for Bushfire Protection.*

47A SHED

Residential – (including garden shed, gazebo, greenhouse).

Exempt Development Criteria

47A.1 The shed has a maximum area of 20m^2 (aggregate).

47A.2 The shed has a maximum height of 2.4 metres above adjacent ground level.

47A.3 The shed is located a minimum of 500mm from adjoining property boundaries and 900mm from any residential building on the site.

47A.4 The shed is located behind the existing building line and generally obscured from any public place.

47A.5 The shed is to be designed and constructed so no nuisance is created by stormwater.

Advisory Note

- Care should be taken to ensure the proposed structures are designed and constructed to allow for snow loading.

47B SHED

Rural outbuildings (machinery sheds, fuel sheds, dairies, haysheds, stables and barns).

(See Clause 44A '*Rural Structures – Miscellaneous*'.)

SUPERSEDED

48 SKYLIGHT ROOF WINDOWS

Exempt Development Criteria

48.1 Skylights are not to exceed an area of $1m^2$.

48.2 Skylights are not to be located less than 900mm from a property boundary or from a wall separating attached dwellings.

48.3 The building work must not reduce the structural integrity of the building or involve structural alterations.

48.4 Any opening created by the installation is to be adequately waterproofed.

48.5 Skylights are to be Installed in accordance with the manufacturer's instructions.

48.6 The skylights are not to be visible from a public place when installed within a building that is located within a heritage conservation area.

48.7 Skylights are not to compromise the privacy of adjoining neighbours.

49 SOLID FUEL HEATER

Exempt Development Criteria

49.1 The solid fuel heater is to be Installed in accordance with the BCA.

49.2 The solid fuel heater is to be installed in accordance with the manufacturer's specifications.

49.3 The solid fuel heater is to be installed in accordance with the requirements of the Department of Environment and Conservation.

50 SPORTING AND RECREATIONAL STRUCTURES AND EQUIPMENT

Exempt Development Criteria

50.1 Sporting and recreational structures and equipment are to be established for the playing of team and/or ball sports on public open space land that is managed by Council.

50.2 Sporting and recreational structures and equipment are installed and maintained in accordance with the applicable Council-adopted Plan of Management for the site.

50.3 Sporting and recreational structures and equipment are structurally sound.

Advisory Note

- Lighting devices, grandstands, amenities buildings and dressing sheds are not exempt

51 STAIRS

Exempt Development Criteria

51.1 The property on which the stairs are to be located is not listed as an item of environmental heritage as detailed in Schedule 8 of Orange LEP 2000.

51.2 When constructed of steel, the stairs are to be designed, fabricated and installed in accordance with Australian Standard AS4100 – Steel Structures.

51.3 When constructed of timber the stairs are to be designed, fabricated and installed in accordance with Australian Standard AS1720 – Timber Structures.

52 STREET FURNITURE & BUS SHELTERS

(including any advertisement thereon), street sign, direction sign or traffic-management sign

Exempt Development Criteria

52.1 Involves the erection and/or installation of one or more seats, rubbish bins, picnic tables, picnic platforms and/or shelters over picnic facilities.

52.2 Structures are established for or on behalf of Council, on Council-managed public land, in accordance with a Council adopted Plan of Management.

SUPERSEDED

53 SUBDIVISION

Boundary Adjustments.

Exempt Development Criteria

53.1 **Boundary Adjustment – any adjustment to the boundary of an allotment that:**

53.1.1 will not result in any building contravening the deem-to-satisfy provisions of the *Building Code of Australia* ; and

53.1.2 will not create any additional allotments; and

53.1.3 will not result in a lot contravening any development standard applicable to the land.

53.2 **Rectifying an Encroachment – an adjustment to a boundary to rectify an encroachment that:**

53.2.1 will not result in any building contravening the deem-to-satisfy provisions of the *Building Code of Australia* ; and

53.2.2 will not create any additional allotments.

53.3 **Lease of Community Land**

53.3.1 A subdivision for the purposes of a lease granted under Division 2 of Part 2 of Chapter 6 of the *Local Government Act 1993.*

54 SWIMMING POOL

Above-ground.

Exempt Development Criteria

54.1 The swimming pool has a maximum capacity of 30,000 litres.

54.2 The swimming pool and its surrounds comply with the *Swimming Pooling Act 1992* and Regulations.

54.3 Construction works for the pool do not require any excavation greater than 600mm.

54.4 The swimming pool is located behind the building line and reasonably obscured from view to a public place.

54.5 Swimming-pool-filtration equipment does not generate a noise nuisance at neighbouring dwellings.

54.6 Waste water from the pool is to be connected to Council's sewer where public sewerage facilities are provided to the land.

55 TELECOMMUNICATIONS

Exempt Development Criteria

55.1 All above-ground work is no higher than 1 metre.

55.2 Where work is proposed to be carried out on the Council footpath, evidence of public liability must be provided to Council, having a minimum liability sum of $10,000,000 and Council listed as an interested party.

55.3 Where required, a Road Opening Permit be obtained from Council, prior to the commencement of works.

SUPERSEDED

56 WATER FEATURES

Exempt Development Criteria	
56.1	The water feature is not more than $10m^2$ in area
56.2	Where erected in a residential zone, the built-upon area of the property on which it is erected, does not exceed 60% after its erection
56.3	The water feature is not located forward of the building line, or within the setback to a secondary street frontage.
56.4	The water feature has a maximum water depth of not more than 300mm.
56.5	Appropriate barriers (eg. vegetation, wire or steel mesh, or edging) are established so that young children cannot readily access the water
56.6	The noise level does not, at any time exceed the ambient sound pressure level by in excess of 5dB(A) at the property boundary and is not audible within any habitable room of any adjoining premises
56.7	Not more than one fountain is established in any single allotment
56.8	The water feature has a minimum setback of 1 metre to the nearest property boundary
56.9	The water feature is not more than 1.5 metres high.

57A WATER HEATER

General – including solar hot water heaters.

Exempt Development Criteria	
57A.1	Any building work involved does not reduce the structural integrity of the building or involve any structural alterations.
57A.2	Solar water heaters at their highest point do not exceed the highest point of a pitched roof or are not more than 1 metre higher than a flat room of they building which the water heaters serve.

58B WATER HEATER

Heat-pump water heaters.

Exempt Development Criteria	
58B.1	The water heater and heat pump is not located within 2 metres of any boundary.
58B.2	Noise levels from the heat pump unit do not, at any time, exceed the ambient sound pressure levels by 5dB(A) when measured at the boundary of the property.
58B.3	Noise created by the heat pump unit is not audible within a habitable room of an adjoining premises.

SUPERSEDED

16.2 COMPLYING DEVELOPMENT CRITERIA – SCHEDULE 2

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

1 BED AND BREAKFAST ACCOMMODATION

The use of an existing lawful dwelling for bed and breakfast accommodation.

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

1.1 A maximum of 3 bedrooms are used by guests.

1.2 A minimum of 2 bathrooms/toilets are provided in the dwelling.

1.3 Fire-safety measures are provided in accordance with the BCA.

1.4 Only one dwelling of a dual occupancy is used for a bed and breakfast.

1.5 Off-street car parking is provided at a rate of at least one space for resident parking and one space for each guest room.

1.6 The erection of any garage or carport is to be located at or behind the building line and to conform with the complying development requirements for garages.

1.7 Toilets and bathroom facilities for guests are to be separate from those used by permanent residents.

1.8 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

1.9 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

2 BUSINESS USES

A change of building use from a non-food shop, business premises or office to a restaurant or food shop, or from a restaurant or food shop to a non-food shop, business premises or office in Zone 3(a).

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

2.1 No more than 2,000 square metres is involved in the change of building use.

2.2 The use must replace a former use carried out in accordance with a development consent or a change of use under *State Environmental Planning Policy No 4 – Development Without Consent*.

2.3 Where applicable, the applicant is to obtain an approval from Orange City Council to discharge liquid trade waste to Council's sewer in accordance with the Orange City Council Liquid Trade Waste Policy prior to the issue of a complying development certificate.

2.4 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

2.5 A change to a food shop or restaurant must comply with the *Food Act 1989,* associated regulations, Food Safety Standards and Australian Standard AS4674.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

3 COMMERCIAL BUILDING ALTERATIONS

Internal alterations to a building lawfully used as a shop, business premises, an office or a restaurant in Zone 3(a) or 3(b) that alter load-bearing elements within the building with a total floor space not exceeding:

- 2,000 square metres in Zone 3(a); or
- 400 square metres in Zone 3(b).

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

NB Ensure that the proposed development is consistent with the definitions of a shop, business premises, office or a restaurant as defined in Clause 86 of Orange Local Environmental Plan 2000 (as amended).

Complying Development Criteria

3.1 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

3.2 Where applicable, the applicant is to obtain an approval from Orange City Council to discharge liquid trade waste to Council's sewer in accordance with the Orange City Council Liquid Trade Waste Policy prior to the issue of a complying development certificate.

3.3 Internal alterations to a restaurant must comply with the *Food Act 1989,* associated regulations, Food Safety Standards and AS4674.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

4 DUAL OCCUPANCIES IN RESIDENTIAL ZONES

Internal alterations or additions to a lawfully-erected dwelling house in a residential zone to create two dwellings.

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

4.1 Additions are single storey only.

4.2 Additions are at or behind the rear building line of the dwelling house.

4.3 The site coverage of the dual occupancy in a residential zone is not to exceed 50% or the existing site coverage of the dwelling house, whichever is the greater.

4.4 On-site parking is to be provided for each dwelling at or behind the building line.

4.5 An area of private open space equivalent to 50% of the proposed floor area is provided adjacent to the living area of each dwelling. Private open space may be combined into one shared usable space.

4.6 External materials of any addition are to match existing materials of the dwellings.

4.7 Any additions that are attached to the rear of the building must form an integral extension to the building. Connections to the original building by breezeways, carports, pergolas and the like do not constitute additions for dual occupancy as complying development.

4.8 One access point only from a public road.

4.9 Minimum driveway width of 3m is required to all parking areas.

4.10 All dwellings are connected to reticulated water, public sewer and drainage systems.

4.11 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

4.12 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

5 DUAL OCCUPANCIES IN RURAL AREAS

Dual occupancy on land within Zone 1(a), Zone 1(c) or Zone 7.

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

5.1 The two dwellings are attached.

5.2 The subject land satisfies the relevant development standards contained within LEP 2011 relating to the erection of a dwelling.

5.3 Each dwelling is constructed of matching external materials.

5.4 Under-cover parking is provided for each dwelling.

5.5 The buildings are set back a minimum of 20 metres from a boundary to a road or adjoining property or otherwise within a building envelope indicated on the plan of subdivision for the land approved by Council.

5.6 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

5.7 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

6 HEALTH CONSULTING ROOMS

Alterations and additions to a lawfully erected dwelling for the purposes of health consulting rooms.

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

6.1 A change of building use from a dwelling house in a residential zone.

6.2 A maximum of 3 health-care professionals and 3 support staff use the premises at any one time.

6.3 A minimum of 2 off-street car-parking spaces per heath-care practitioner are provided behind the building line for use by staff and customers.

6.4 Rear alterations behind the building line are not visible from public places.

6.5 Site coverage of buildings on the land (both existing and proposed) is not to exceed 60% of the land area.

6.6 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

6.7 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

7 HOUSES AND EXTENSIONS IN RESIDENTIAL ZONES

- Single-storey detached dwelling house (not within a heritage conservation area);
- Single-storey alterations and additions to a dwelling, including pergolas decks and the like).

Advisory Note

- The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.
- A secondary boundary is defined as the boundary for which the side building façade relates.

Complying Development Criteria

7.1 Each part of the structure complies with the relevant building line fixed by a development control plan that applies to the land.

7.2 A garage or carport is not to project forward of the front wall of the dwelling by more than 1.5m.

7.3 A garage with access from a secondary frontage on a corner allotment shall be provided with a minimum setback of at least 5.5m or 1.5m behind the building line, which ever is the greater distance. This will facilitate tandem parking in front of the garage wholly within the site.

7.4 Attached carports and garages facing the public street are to have a maximum aggregate width of 6.5m (measured from external wall to external wall) or 50% of the frontage of the dwelling, whichever is less.

7.5 Single-storey residential dwellings are considered to be single storey where the floor level at any point does not exceed 1.2 metres above natural ground level and the distance between the floor level and the underside of the eaves is no more than 3.0m.

7.6 The front elevation of a dwelling (ie, the front elevation facing the primary street frontage) is to include relief elements such as doors, windows, verandahs or porches, varied façade lines, and varied construction materials facing the street.

7.7 Buildings are to be contained within an envelope generated by planes projecting at 45° over the site commencing at 2.5m above existing ground levels from each side and rear boundary.

7.8 Site coverage of buildings on the land (both existing and proposed) is not to exceed 60% of the land area.

7.9 A side boundary setback for a dwelling of at least 900mm for walls is provided. Eaves and other projections may encroach within this area.

7.10 Sunlight to at least 40% of the main area of private open space within the development and on adjoining land is not reduced to less than 4 hours between 9am and 3pm on 21 June or is not further reduced where existing overshadowing is greater than the above requirement.

7.11 Sunlight is at least 75% of north-facing living-area windows within the development and on adjoining land is provided for a minimum of 4 hours on 21 June or is not further reduced than existing where already less.

7.12 Residential development that is not subject to the provisions of BASIX is to comply with Council's Energy Smart Homes Policy.

7.13 Windows that allow an outlook to a window within a habitable room of a neighbouring house within 6m are to be either offset from the alignment of the windows by at least 0.5m or have sill heights of at least 1.5m above the floor level or have fixed obscure glazing in those parts of the window below 1.5m or are obscured by a boundary fence up to 1.8m high.

7.14 Driveways shall have a maximum width of 6 metres for laybacks and driveways where they cross the public footpath. Driveways shall be located at least 6 metres from the boundary line at an intersection (preferably nearest the boundary furthest from the intersection) and

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT
7 HOUSES AND EXTENSIONS IN RESIDENTIAL ZONES

- Single-storey detached dwelling house (not within a heritage conservation area);
- Single-storey alterations and additions to a dwelling, including pergolas decks and the like).

500mm clear of any drainage structures within the kerb and gutter. Driveways are to have a minimum width of 3m and be constructed in accordance with Australian Standard AS2890.

7.15 Provision is made for on-site car parking for a dwelling at a rate of 1 space for a one or two-bedroom dwelling and 2 spaces for a dwelling that exceeds three bedrooms.

7.16 Private open space for dwellings is to have a usable area of at least equivalent to 50% of the dwelling floor space (gross) with a minimum dimension of 3m and include at least one area with minimum dimensions of 5m x 5m directly accessible to a living area preferably orientated to the north or east of the dwelling.

7.17 Private open space is located behind the building line.

7.18 No more than one third of the front-setback area is to be hard surface. The remainder of the front-setback area is to be landscaped consistent with the neighbourhood character.

7.19 The land is fully serviced.

7.20 The land complies with development standards for allotments in Zone 2(d).

7.21 The land has a minimum area of 800 square metres in Calare in Zone 2(a).

7.22 The land has a minimum area of 850 square metres in Ploughmans Valley in zone 2(a).

7.23 The land has a minimum area of 1,000 square metres in the Village of Spring Hill.

7.24 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

7.25 The land is not located within a scenic protection area as defined by clause 17 of the LEP.

7.26 Alterations and additions to a dwelling located within a heritage conservation area are to be carried out at the rear of the building and comprise complementary building materials and to not be prominently visible from a public place.

7.27 For land other than that described in paragraph 7.20, 7.21, 7.22 or 7.23, the land has a minimum area of 550 square metres for lots other than battle-axe lots or 650 square metres for battle-axe shaped lots, excluding the area of accessway.

7.28 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

7.29 The external walls of a dwelling house are to be at least 3 metres from the rear boundary or boundaries of the subject land.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

8 HOUSES AND EXTENSIONS IN RURAL ZONES

- Detached dwelling house on vacant land within Zones 1(a), 1(c) or 7.
- Alterations and additions to a lawfully-established existing dwelling house.

Advisory Note

- The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.
- See Rural Outbuildings for carports and garages in association with a rural dwelling.

Complying Development Criteria

8.1 On land that has been created in accordance with clause 31 or 32 or that has a minimum area of 100 hectares in Zones 1(a) or 7 or that has a minimum area of 2 hectares in Zone 1(c), if a new dwelling house.

8.2 The buildings are set back a minimum of 20 metres from a boundary to a road or adjoining property or otherwise within a building envelope indicated on the plan of subdivision for the land approved by Council.

8.3 All-weather access is provided to the dwelling house from a public road.

8.4 Residential development that is not subject to the provisions of BASIX complies with Council's Energy Smart Homes Policy.

8.5 A suitable area is available for perpetual on-site disposal of effluent wastes.

8.6 Where buildings are sited to be within 150m of land used for horticulture, viticulture or agriculture where chemical sprays are regularly applied, a vegetative buffer is to be established in accordance with the principles within DCP 2004.

8.7 External building materials are to blend with the landscape of the locality with recessive colours being predominant.

8.8 Two-storey houses are to be visually contained within the ridgeline when viewed from an adjacent public road.

8.9 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

8.10 The land is not located within a scenic protection area as defined by clause 17 of the LEP.

8.11 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

9 INDUSTRIAL AND WAREHOUSE BUILDINGS

- The erection of an industrial or warehouse building and its use consistent with the classification of the building under the *Building Code of Australia* in Zone 4, but not a building used for actually or potentially-hazardous or offensive industries.
- Ancillary buildings associated with industries or warehouses.

Advisory Note

- The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.
  NB Ensure that the proposed development is consistent with the definitions of an industry or a warehouse as defined in Clause 86 of Orange Local Environmental Plan 2000 (as amended).
- A development application is to be submitted to and approved by Council prior to the erection of any advertising structures or signs of a type that do not meet the exempt development provisions of Orange Development Control Plan 2004 (as amended).

Complying Development Criteria

9.1 The floor space of buildings on the land does not exceed 2,000 square metres for land in the Clergate Road Industrial Area, Narrambla Business Park and Leewood Industrial Estate or the site coverage of buildings on the land does not exceed 50% of the land area, whichever is less.

9.2 The floor space of buildings on land other than land described in paragraph 9.1 does not exceed 500 square metres or the site coverage of buildings on the land does not exceed 50% of the land area, whichever is less.

9.3 On-site parking is to be provided at a rate of 1 space per 100m² of gross floor area or 1 space per 2 employees, whichever is greater.

9.4 Parking areas and driveways to be sealed.

9.5 Truck access, manoeuvring and loading areas are to be located wholly on site and be designed to enable vehicles anticipated to use the site to enter and leave the site in a forward direction.

9.6 Outdoor storage areas are located behind the front building line and suitably screened from public places.

9.7 Buildings do not reduce the extent of existing landscaping, car parking, manoeuvring or loading areas required by a development consent that applies to the land.

9.8 Buildings in the Clergate Road Industrial Area, Narrambla Business Park and Leewood Industrial Estate are to have a maximum height of 10m. In other areas, the maximum height is 6 metres.

9.9 Roof pitch is not to exceed 20 degrees.

9.10 Buildings are to have a front setback of a minimum of 10 metres in the Clergate Road Industrial Area, Narrambla Business Park and Leewood Industrial Estate. A minimum setback from a side street is to be 5 metres.

9.11 In other areas the front setback is to be 7.5 metres. Brick offices associated with the industry may be set back a minimum of 4.5m from the street alignment in areas other than the Leewood, Narrambla and Clergate Road areas.

9.12 A minimum 3m-wide garden area, incorporating ground covers, shrubs and trees, is to be

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

9 INDUSTRIAL AND WAREHOUSE BUILDINGS

- The erection of an industrial or warehouse building and its use consistent with the classification of the building under the *Building Code of Australia* in Zone 4, but not a building used for actually or potentially-hazardous or offensive industries.
- Ancillary buildings associated with industries or warehouses.

established along the site's boundary with a road, including future distributor roads.

9.13 External walls and roofing are to be constructed of non-reflective material such as brick, concrete or Colorbond sheeting. Recessive colours are to be applied to external finishes.

9.14 Security fencing up to 2.4 metres of wire//mesh construction or 1.8m solid construction may be erected on rear and side boundaries and at the front building line.

9.15 A minimum 6m-wide accessway is to be provided to the site in accordance with Council's Subdivision and Development Code.

9.16 The development is designed to be connected to Council's reticulated water, sewer and drainage facilities.

9.17 Where applicable, the applicant is to obtain an approval from Orange City Council to discharge liquid trade waste to Council's sewer in accordance with the Orange City Council Liquid Trade Waste Policy prior to the issue of a complying development certificate.

9.18 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

9.19 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

10 RESIDENTIAL OUTBUILDINGS

Outbuildings used for garages and carports at or behind the front building line of the dwelling house.

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

10.1 Residential outbuildings are to be limited to a maximum floor area of 42m², have a maximum wall height of 2.8m and have a minimum setback of 500mm from side boundaries.

10.2 Residential outbuildings are to be located at or behind the rear building alignment.

10.3 Buildings are to be contained within an envelope generated by planes projecting at 45° over the site commencing at 2.5m above existing ground levels from each side and rear boundary.

10.4 Site coverage of buildings on the land (both existing and proposed) are not to exceed 60% of the land area.

10.5 A usable area of private open space equivalent to the area of at least 50% of the dwelling floor space (gross) that has a minimum dimension of 3m and includes at least one area with minimum dimensions of 5m x 5m directly accessible to a living area is to be maintained for the dwelling.

10.6 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

10.7 Residential outbuildings in association with a dwelling located within a heritage conservation area are to be carried out at the rear of the building and comprise complementary building materials and are not to be prominently visible from a public place.

10.8 The land is not located within a scenic protection area as defined by clause 17 of the LEP.

10.9 One access is provided to the land.

10.10 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

11 RURAL OUTBUILDINGS

- Garages and carports located at or behind the front building line of the dwelling house.
- Plant or machinery sheds, stables, shearing sheds, hay sheds and the like but does not relate to rural industries or buildings used for intensive horticulture or intensive livestock industries. (The building must be used in association with and ancillary to the agricultural use of the land).

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

11.1 The building is to be set back at least 20 metres from each boundary except for setbacks from arterial roads. The setback from an arterial road is to be 50m.

11.2 The maximum floor area of a rural outbuilding within land zoned 1(a) General Agriculture and Zone 7 Water Supply Catchment is not to exceed 500 square metres.

11.3 The maximum floor area of a rural outbuilding within land zoned 1(c) Rural Residential is not to exceed 200 square metres.

11.4 The building is to be constructed of non-reflective external building materials.

11.5 The design and external appearance of the building is to be consistent with the rural character of the area.

11.6 Outbuildings are to be located at or behind the rear building line of the dwelling house visible from a road.

11.7 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

11.8 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

12 SUBDIVISION

Subdivision creating lots on land within Zones 1(a) or 7.

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

12.1 All new lots have a minimum area of 100 hectares.

12.2 The shape of the lots is suitable for agricultural use of the land.

12.3 All new lots have frontage and all-weather access to a public road.

12.4 A building envelope is to be identified on the subject land. The building envelope is to be set back at least 20 metres from each boundary except for setbacks from arterial roads. The setback from an arterial road is to be 50m.

12.5 The building envelope is to be sited a minimum of 150m from land used for horticulture, viticulture or agricultural activities where chemical sprays are regularly applied.

12.6 All lots are to have frontage to a sealed public road.

12.7 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

13 SUBDIVISION

Subdivision creating lots for the purpose of a dwelling house in Zone 2(a).

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

13.1 All new lots have a minimum area of 500 square metres except for:

- battleaxe-shaped lots, which are to have a minimum area of 650 square metres excluding the area of the accessway;
- land in the suburb of Calare, which are to have a minimum area of 800 square metres;
- a maximum of three lots are proposed to be created;
- land in Ploughmans Valley, which are to be in accordance with the adopted subdivision layout;
- land in the Waratah Hills Estate, which are to be in accordance with the adopted subdivision layout.

13.2 All new lots have access to a public road.

13.3 Each lot has a minimum width of 17m at the effective building line.

13.4 Battleaxe-shaped lots are to have a minimum width of 4.5m.

13.5 The whole lot is to be a minimum of 600mm above the 1-in-100-year flood level.

13.6 All necessary services are available to the land (ie, water, sewer, drainage, telecommunications and electricity).

13.7 Does not involve the opening of a new road.

13.8 Located within 400 metres of existing open space or proposed open space identified in a development control plan adopted by the Council.

13.9 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

13.10 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

14 SUBDIVISON

Subdivision creating lots for the purpose of a dwelling house in Zone 2(v) within the Village of Spring Hill.

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

14.1 A maximum of 3 lots is to be created.

14.2 All new lots have a minimum area of 1,000 square metres.

14.3 All new lots have access to a public road.

14.4 All new lots are to be connected to Council's reticulated sewer, water supply and drainage facilities.

14.5 Does not involve the opening of a new road.

14.6 Each lot is to have frontage to a sealed public road. A single gutter crossing is to be established for each lot.

14.7 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT
15 STRATA SUBDIVISION

Advisory Note
The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

15.1	Lot boundaries conform to external and partition walls and fence lines as determined in the development consent applying to the land.
15.2	Does not include development lots.
15.3	Car parks required for residential units are allocated to each lot.
15.4	Buildings are completed to lock-up stage.
15.5	Fencing is complete.
15.6	Driveways, landscaping, garbage and mail facilities are complete.
15.7	All necessary services are available to the land (ie, water, sewer, drainage, telecommunications and electricity).
15.8	Common areas are to include all public areas including car parking for the public (ie, visitor and customer car parking as required by the consent), landscape areas; garbage storage areas and public areas such as corridors, public staircases, elevators, walkways and similar areas.
15.9	Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.
15.10	The land is not located in an area identified as being affected by naturally-occurring asbestos as defined in the attached plan.

SCHEDULE 2 - COMPLYING DEVELOPMENT CRITERIA

TYPE OF DEVELOPMENT

16 SWIMMING POOLS

Swimming pool in conjunction with a dwelling house.

Advisory Note

The documents to accompany an application for complying development are to be in accordance with Schedule 1 of the Environmental Planning & Assessment Regulation 2000.

Complying Development Criteria

16.1 Must be ancillary to a dwelling and be for private use only.

16.2 Site coverage of buildings on the land (both existing and proposed) is not to exceed 60% of the land area.

16.3 Situated behind the building line of the dwelling house if in an urban zone.

16.4 The pool, fencing and surrounding structures must comply with:

- the *Swimming Pools Act 1992*;
- AS 1926.2 (1995) Swimming Pool Safety - Location of Fencing for Private Swimming Pools; and
- the Swimming Pools Regulations 1998.

16.5 The installation and construction of the pool must comply with:

- AS/NZS 1938;1994- Swimming Pools - Pre-Moulded Fibre-Reinforced - Design and Fabrication;
- AS/NZS 1839:1994 - Swimming Pools - Pre-Moulded Fibre - Reinforced - Installation; and
- AS2783:1992 - Use of Reinforced Concrete for small Swimming Pools.

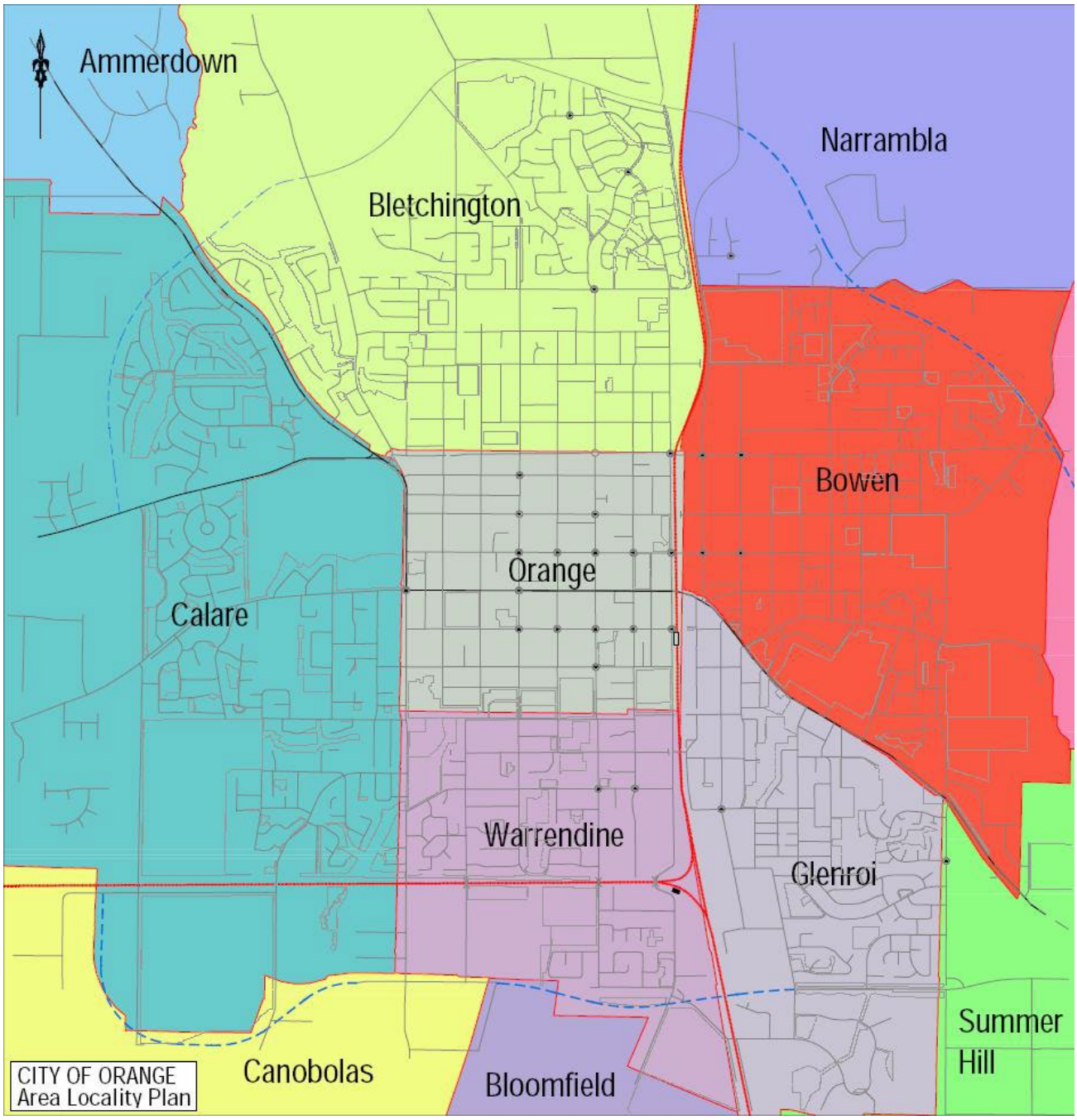
16.6 The swimming pool must be situated at least 1.2m from side or rear boundaries.

16.7 Where water supply and sewerage drainage works are proposed, an approval from the water and sewer authority (Orange City Council) to carry out water and sewer works under the *Local Government Act 1993* is to be obtained prior to the issue of a complying development certificate.

16.8 The land is not located in an area identified as being affected by naturally-occurring asbestos as detailed in Map A attached to this schedule.



Map – Asbestos-affected development



Map – Orange locality plan

16.3 STANDARD COMPLYING DEVELOPMENT CONDITIONS – SCHEDULE 3

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.1 – GENERAL

BEFORE YOU BEGIN WORK

1 Two days before any site works, building or demolition begins, the person who has the benefit of the Complying Development Certificate approval must:

- a forward a Notice of Commencement of Work and Appointment of Principal Certifying Authority to the Council; and
- b inform the adjoining owners in writing that work will commence.

2 Before any site works, building or demolition begins, the applicant must:

- a notify the Council of the name, address, phone number and licence number of the builder; and
- b a sign must be erected in a prominent position on any site on which building work, subdivision work or demolition work is being carried out:
  - i) showing the name, address and telephone number of the principal certifying authority for the work, and
  - ii) showing the name of the principal contractor (if any) for any building work and a telephone number on which that person may be contacted outside working hours, and
  - iii) stating that unauthorised entry to the site is prohibited.
- c Any such sign is to be maintained while the building work, subdivision work or demolition work is being carried out, but must be removed when the work has been completed; and
- d erect a sign at the front of the property with the builder's name, licence number and site address; and
- e provide a temporary on-site toilet if access to existing toilets is not adequate; and
- f protect and support any neighbouring buildings and land; and
- g protect any public land or place from obstruction, inconvenience or damage due to the carrying out of the development; and
- h take steps to prevent any substance from falling onto any public land or place; and
- i a Waste Management Plan is to be submitted to Orange City Council; and
- j In the case of residential building work for which the *Home Building Act 1989* requires there to be a contract of insurance in force with Part 6 of the Act, evidence of such a contract of insurance being in force must be provided to the Principal Certifying Authority prior to any building work authorised to be carried out by the consent commences; and
- k Residential building work within the meaning of the *Home Building Act 1989* must not be carried out unless the principal certifying authority for the development to which the work relates (not being the council) has given the council written notice of the following information:
  - a in the case of work for which a principal contractor is required to be appointed:
    - i the name of the licence number of the principal contractor, and
    - ii the name of the insurer by which the work is insured under Part 6 of that Act,
  - b in the case of work to be done by an owner-builder:
    - i the name of the owner-builder, and
    - ii if the owner-builder is required to hold an owner-builder permit under that Act, iii) the number of the owner-builder permit.

  If arrangements for doing the residential building work are changed while the work is in progress so that the information under this condition becomes out of date, further work must not be carried out unless the principal certifying authority for the development to which the work relates (not being the council) has given the council written notice of the updated information.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.1 – GENERAL

SITE MANAGEMENT

3 Run-off and erosion controls must be designed and installed in accordance with the Orange City Council Development and Subdivision Code and the Landcom, Managing Urban Stormwater; Soils and Construction Handbook. Controls must be implemented before the commencement of construction works and maintained for the duration of works in order to prevent soil erosion, water pollution or the discharge of loose sediment on surrounding land.

DRAINAGE

4 The completed building is to have a drainage system so that:
- a the land surrounding the structure is graded to divert surface water to the street and the diverted surface water is clear of existing and proposed structures and adjoining premises; or
- b if the water drains to the rear of the property, it is collected and drained via a gravity system to a Council stormwater line and disposed of in a manner consistent with the Council's Development and Subdivision Code; or
- c in rural areas where town water is not available, an adequate water supply in the form of a minimum 90,000-litre water storage tank shall be provided on the property when the proposed development involves the construction of a dwelling house or dwelling house additions. Overflow from the tank must discharge not less than 3 metres from an adjacent building or boundary. The tank must be accessible to Rural Fire Service vehicles and also have a minimum of one connection point that is compatible to NSW Rural Fire equipment.

CONSTRUCTION WITHIN BOUNDARIES

5 The owner of the property is to ensure that any structure is constructed:
- a to meet the setback requirements of the approved plans; and
- b to be located within the confines of the lot.

6 Where the application relates to the construction of a building or additions to an existing building that is located either on the minimum building setback prescribed by the Building Code of Australia, or within 1.5m of a boundary, the proposed dwelling or additions must be set out by a registered surveyor and a copy of the setout sketch shall be provided to the Principal Certifying Authority prior to the placement of footings and/or slab.

SITE ACCESS

7 If kerb and gutter is provided, driveways are to be a minimum of 500mm clear of all drainage structures on the kerb and gutter and are not to interfere with the existing public utility infrastructure, including Council infrastructure, unless prior approval is obtained from the relevant authority. All approvals and construction of driveways is to be undertaken in accordance with Council's Development and Subdivision Code.

8 Where a driveway is to be constructed, the layback shall be constructed in accordance with the Orange City Council Development and Subdivision Code, whereby the finished level at the property boundary is to be a minimum of 150 mm above the kerb level.

9 In the case of rural or rural residential lots, if kerb and gutter is not provided the access to the lot must be constructed using a gravel vehicular entrance incorporating at least a 375mm-diameter stormwater pipe and concrete headwalls. The actual capacity of the stormwater pipe shall be determined on the basis of the catchment by a suitably qualified and practicing civil engineer.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.1 – GENERAL

HOURS OF WORK

10 All construction/demolition work on the site is to be carried out between the hours of 7.00 am and 6.00 pm Monday to Friday inclusive, 7.00 am to 5.00 pm Saturdays and 8.00 am to 5.00 pm on Sundays and Public Holidays. Written approval must be obtained from the General Manager of Orange City Council to vary these hours.

COMPLIANCE WITH BUILDING CODE OF AUSTRALIA AND INSURANCE REQUIREMENTS UNDER *HOME BUILDING ACT 1989*

11 All work must be carried out in accordance with the provisions of the Building Code of Australia.

GENERAL STANDARD OF WORK

12 Development must be designed and constructed in accordance with the Orange City Council Development and Subdivision Code.

BUILDING OCCUPATION

13 The building is not to be used or occupied until an Occupation Certificate has been issued by the Principal Certifying Authority.

14 A building in respect of which there is a change of building use must comply with the Category 1 fire safety provisions applicable to the new use.

Note

- In this condition, *Category 1 fire safety provision* has the same meaning as it has in Clause 3 of the *Environmental Planning and Assessment Regulation 2000*.
- The obligation under this condition to comply with the Category 1 fire safety provisions may require building work to be carried out even though none is proposed or required in the relevant consent.

15 Where applicable, Certification from Orange City Council, stating that liquid trade waste measures implemented comply with Orange City Council's Liquid Trade Waste approval, is to be submitted to the Principal Certifying Authority prior to the issuing of an Occupation Certificate.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.2 – DUAL OCCUPANCIES IN RESIDENTIAL ZONES, CONSULTING ROOMS, INDUSTRIAL AND WAREHOUSE BUILDINGS

1 Obtain a Certificate of Compliance from Orange City Council for the payment of relevant Section 94 and Section 64 development and water supply authority contributions for the proposed development; and

2 Obtain a Certificate of Compliance from Orange City Council, or an accredited certifier in regards to the adequacy of water, sewer and drainage infrastructure for the proposed development; and

3 The development's stormwater design is to include the incorporation of stormwater retention within the development, designed to limit peak outflows from the land to the pre-existing natural outflows up to the 100 year ARI frequency, with sufficient allowance in overflow spillway design capacity to safely pass flows of lower frequency (that is, a rarer event) without damage to downstream developments. Where appropriate, the spillway design capacity is to be determined in accordance with the requirements of the Dam Safety Committee.

The design of the detention storage is to be undertaken using the ILSAX rainfall-runoff hydrologic model or an approved equivalent capable of assessing runoff volumes and their temporal distribution as well as peak flow rates. The model is to be used to calculate the flow rates for the existing and post-development conditions. The developed flows are to be routed through the proposed storage within the model so that the outflows obtained are no greater than the flows obtained for the pre-existing natural flows. A report detailing the results of the analysis, which includes:

- catchment plan showing sub-catchments under existing and developed conditions;
- schematic diagram of the catchment model showing sub areas and linkages;
- tabulation detailing the elevation, storage volume and discharge relationships; and
- tabulation for the range of frequencies analysed, the inflows, outflows and peak storage levels for both existing and developed conditions;

together with copies of the data files for the model and engineering design plans of the required drainage system are to be submitted to Orange City Council or an Accredited Certifier upon application for a Construction Certificate.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.3 – RURAL SUBDIVISION IN ZONE 1(a) OR ZONE 7

Standards and conditions that will apply to a Complying Development Certificate for **Rural Subdivision Zone 1(a) or 7** include:

1	Subdivision work in accordance with a complying development certificate must not commence until: a the person having the benefit of the complying development certificate has appointed a principal certifying authority for the subdivision work; and b the principal certifying authority has not later than 2 days before the subdivision work commences, notified the Council of his or her appointment; and c the person having the benefit of the complying development certificate has been given at least 2 days' notice to the council of the person's intention to commence the subdivision work.
2	The development shall be carried out in accordance with the development standards required in Orange Local Environmental Plan 2000 and Development Control plan 2004 as amended, the certified plans and in accordance with all of the conditions in this certificate.
3	Any adjustments to existing utility services which are made necessary by this development proceeding, shall be at the full cost of the Developer.
4	Evidence shall be provided to the Principal Certifying Authority that all contributions have been paid to Council prior to the issuing of a subdivision certificate under section 94 of the Act in accordance with the Contributions Plan applying to the land at the time that the application for a Complying Development Certificate was made.
5	A Surveyor's Certificate or written statement shall be provided to Council or the Principal Certifying Authority, stating that any existing buildings within the boundaries comply in respect of the distances of walls and eaves from the boundaries, prior to the issue of the Subdivision Certificate.
6	Certification from Advance Energy, stating that electricity and street lighting systems comply with Advance Energy's Networks Division Customer Connection Policy NP11.1, shall be submitted to the Principal Certifying Authority prior to issuing of a Subdivision Certificate.
7	A minimum 200mm thick gravel vehicular entrance incorporating a pipe culvert shall be constructed to provide access to the proposed rural lot. The pipe culvert shall consist of minimum 375mm diameter stormwater pipes, 2 concrete headwalls and be a minimum 5 metres long. Where it is not possible to construct a pipe culvert, due to shallow depth of table drain or the entrance is located on a crest, a 6 metre long by 2 metre wide by 100mm deep concrete dish drain may replace pipe culvert. The location of this entrance, selection of pipe culvert or dish drain and construction shall be in accordance with the requirements of the Orange City Council Development and Subdivision Code.
8	A building envelope shall be identified within each lot and shall be indicated on the film plan.
9	Soil sampling for analysing chemical residue shall be carried out within each building envelope. Such testing shall be carried out by a NATA Registered Laboratory. Reference should be made to the *Contaminated Land Management Act 1997*, State Environmental Planning Policy No 55 and ANZECC guidelines. These results shall be provided to council or the Principal Certifying Authority prior to the release of the Subdivision Certificate.
10	A geotechnical investigation is to be carried out within each proposed building envelope by a NATA-registered laboratory, in order to classify the soil of the site in accordance with the Australian Standard 2870 - "Residential Slab and Footings Construction" Code. This report is to be provided to the Principal Certifying Authority prior to the issuing of the Subdivision Certificate.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.3 – RURAL SUBDIVISION IN ZONE 1(a) OR ZONE 7

Standards and conditions that will apply to a Complying Development Certificate for **Rural Subdivision Zone 1(a) or 7** include:

11	A detailed assessment shall be carried out within the building envelope for the installation of any on-site sewage management system. The assessment of the site and soil profile, recommended location and proposed method of on-site disposal of domestic wastes shall be carried out in accordance with the Environment and Health Protection Guidelines for On-site Sewage management for Single Households. This report shall be provided to Council or the Principal Certifying Authority prior to the release of the subdivision Certificate.
12	A written statement shall be provided to the Principal Certifying Authority stating that any existing waste disposal system, stormwater disposal and water supply are fully contained within the boundaries of the existing house lot, prior to the issue of the Subdivision Certificate.
13	An application shall be made to the PCA for a subdivision certificate upon completion of all works required for the development.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.4 – RESIDENTIAL SUBDIVISION IN ZONE 2(a)

Standards and conditions that will apply to a Complying Development Certificate for **Subdivision Zone 2 (a)** include:

1 Subdivision work in accordance with a complying development certificate must not commence until:
- a the person having the benefit of the complying development certificate has appointed a principal certifying authority for the subdivision work; and
- b the principal certifying authority has not later than 2 days before the subdivision work commences, notified the Council of his or her appointment; and
- c the person having the benefit of the complying development certificate has been given at least 2 days' notice to the council of the person's intention to commence the subdivision work.

2 The development shall be carried out in accordance with the development standards required in Orange Local Environmental Plan 2000 and Development Control plan 2004 as amended, the certified plans and in accordance with all of the conditions in this certificate.

3 Engineering plans, showing details of all proposed work and adhering to any conditions of development approval, shall be submitted to the Accredited Certifier prior to any work commencing.

4 Any adjustments to existing utility services which are made necessary by this development proceeding, shall be at the full cost of the Developer.

5 Street trees or shrubs shall not be removed or damaged without the consent of Council. Legal proceedings may be instituted by Council against any person who wilfully destroys or damages street trees/shrubs.

6 Run-off and erosion controls must be designed and installed in accordance with the Orange City Council Development and Subdivision Code and the Landcom, Managing Urban Stormwater; Soils and Construction Handbook. Controls must be implemented before the commencement of subdivision works and maintained for the duration of works in order to prevent soil erosion, water pollution or the discharge of loose sediment on surrounding land.

7 The provisions and requirements of the Orange City Council Development and Subdivision Code, shall be applied to this application and all work constructed within the development shall be in accordance with that Code.

8 A Surveyor's Certificate or written statement shall be provided to Council or the Principal Certifying Authority, stating that any existing buildings within the boundaries comply in respect of the distances of walls and eaves from the boundaries, prior to the issue of the Subdivision Certificate.

9 A Surveyor's Certificate or written statement shall be provided to the Council or Principal Certifying Authority stating that any existing waste disposal system, sewer, stormwater disposal and water supply are fully contained within the existing house lot boundaries, prior to the issue of the Subdivision Certificate.

10 A geotechnical investigation shall be carried out by a NATA Registered Laboratory in order to classify the soil of each new lot in accordance with the Australian Standard 2870 - Residential Slab and Footings Code. This report shall be provided to Council or the Principal Certifying Authority prior to the release of the Subdivision Certificate.

11 Soil sampling for analysing chemical residue shall be carried out within each new lot. Such testing shall be carried out by a NATA Registered Laboratory. Reference should be made to the Contaminated *Land Management Act 1997*, State Environmental Planning Policy No 55 and ANZECC guidelines. These results shall be provided to Council or the Principal Certifying Authority prior to the release of the Subdivision Certificate.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.4 – RESIDENTIAL SUBDIVISION IN ZONE 2(a)

Standards and conditions that will apply to a Complying Development Certificate for **Subdivision Zone 2 (a)** include:

12 All work on the site shall be carried out between the following hours:

a 7.00am to 6.00pm – Monday to Friday
b 7.00am to 5.00pm - Saturday
c 8.00am to 5.00pm – Sunday and Public Holidays

Any noise generated during construction of the development shall not exceed the limits specified in the *Protection of the Environment Operations Act 1997*. (Written approval must be obtained from the General Manager of Council to vary these hours.)

13 An Application shall be made to the Principal Certifying Authority for a subdivision certificate upon completion of all works required for the development.

14 All stormwater shall be collected within the site in a grated stormwater pit and piped to the kerb and gutter on the property frontage, where the surface of the entire lot falls to kerb and gutter on the property frontage. Where the surface of the lot falls away from the kerb and gutter all stormwater from the site shall be collected and piped to Councils stormwater system. Engineering plans for this drainage system shall be submitted to the Accredited Certifier prior to the commencement of any work.

15 Where stormwater crosses land outside the lot it favours, an easement to drain water shall be created over the works. The minimum width of the easement shall be as required in the Orange City Council Development and Subdivision Code.

16 The development's stormwater design shall include the incorporation of stormwater retention within the development, designed to limit peak outflows from the land to the pre-existing natural outflows up to the 100 year ARI frequency, with sufficient allowance in overflow spillway design capacity to safely pass flows of lower frequency (that is, a rarer event) without damage to downstream developments. Where appropriate, the spillway design capacity is to be determined in accordance with the requirements of the Dam Safety Committee.

The design of the detention storage is to be undertaken using the ILSAX rainfall-runoff hydrologic model or an approved equivalent capable of assessing runoff volumes and their temporal distribution as well as peak flow rates. The model is to be used to calculate the flow rates for the existing and post-development conditions. The developed flows are to be routed through the proposed storage within the model so that the outflows obtained are no greater than the flows obtained for the pre-existing natural flows. A report detailing the results of the analysis, which includes:

- catchment plan showing sub-catchments under existing and developed conditions;
- schematic diagram of the catchment model showing sub areas and linkages;
- tabulation detailing the elevation, storage volume and discharge relationships; and
- tabulation for the range of frequencies analysed, the inflows, outflows and peak storage levels for both existing and developed conditions;

together with copies of the data files for the model and engineering design plans of the required drainage system shall be submitted to the Accredited Certifier prior to the commencement of any work.

17 Certification from Advance Energy, stating that electricity and street lighting systems comply with Advance Energy's Networks Division Customer Connection Policy NP11.1, shall be submitted to the Principal Certifying Authority prior to issuing of a Subdivision Certificate.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.4 – RESIDENTIAL SUBDIVISION IN ZONE 2(a)

Standards and conditions that will apply to a Complying Development Certificate for **Subdivision Zone 2 (a)** include:

18 Certification from a licensed telecommunications provider operating within the City, stating that satisfactory arrangements for the supply of telecommunications services to the subdivision have been made, shall be submitted to the Principal Certifying Authority prior to issuing of a Subdivision Certificate.

19 Plans shall be submitted to the Principal Certifying Authority indicating the solar access rating of each allotment, including working calculations, and showing the method of assessment. Calculations shall be determined in accordance with the publication - "Solar Access for Lots" - produced by Energy Victoria. (Copies are available from Council.)

20 Prior to the issuing of a subdivision certificate, the applicant shall obtain a certificate of compliance from Orange City Council for the payment of relevant Section 94 contributions and Water Supply Authorities contribution for the proposed development.

21 A certificate of compliance shall be obtained from Orange City Council to determine the adequacy of water, sewer and drainage infrastructure for the proposed development prior to the issue of an Occupation Certificate.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.5 – SUBDIVISION IN THE VILLAGE OF SPRING HILL

Standards and conditions that will apply to a Complying Development Certificate for **Subdivision Spring Hill Zone 2 (v)** include:

1 The development shall be carried out in accordance with the development standards required in Orange Local Environmental Plan 2000 and Development Control plan 2004 as amended, the certified plans and in accordance with all of the conditions in this certificate.

2 Engineering plans, showing details of all proposed work and adhering to any conditions of development approval, shall be submitted to the Accredited Certifier prior to any work commencing.

3 Any adjustments to existing utility services which are made necessary by this development proceeding, shall be at the full cost of the Developer.

4 Prior to commencing work the applicant must pay the Long Service Leave levy, where applicable.

5 Street trees or shrubs shall not be removed or damaged without the consent of Council. Legal proceedings may be instituted by Council against any person who wilfully destroys or damages street trees/shrubs.

6 Prior to the issuing of a subdivision certificate, the applicant shall obtain a certificate of compliance from Orange City Council for the payment of relevant Section 94 contributions and Water Supply Authorities contributions for the proposed development.

7 Prior to the issuing of a subdivision certificate, the application shall obtain a certificate of compliance from Orange City Council to determine the adequacy of water, sewer and drainage infrastructure for the proposed development.

8 Run-off and erosion controls must be designed and installed in accordance with the Orange City Council Development and Subdivision Code and the Landcom, Managing Urban Stormwater; Soils and Construction Handbook. Controls must be implemented before the commencement of subdivision works and maintained for the duration of works in order to prevent soil erosion, water pollution or the discharge of loose sediment on surrounding land.

9 The provisions and requirements of the Orange City Council Development and Subdivision Code, shall be applied to this application and all work constructed within the development shall be in accordance with that Code.

10 A Surveyor's Certificate or written statement shall be provided to Council or the Principal Certifying Authority, stating that any existing buildings within the boundaries comply in respect of the distances of walls and eaves from the boundaries, prior to the issue of the Subdivision Certificate.

11 A Surveyor's Certificate or written statement shall be provided to the Council or Principal Certifying Authority stating that any existing waste disposal system, sewer, stormwater disposal and water supply are fully contained within the existing house lot boundaries, prior to the issue of the Subdivision Certificate.

12 A geotechnical investigation shall be carried out by a NATA Registered Laboratory in order to classify the soil of each new lot in accordance with the Australian Standard 2870 - Residential Slab and Footings Code. This report shall be provided to Council or the Principal Certifying Authority prior to the release of the Subdivision Certificate.

13 Soil sampling for analysing chemical residue shall be carried out within each new lot. Such testing shall be carried out by a NATA Registered Laboratory. Reference should be made to the Contaminated Land Management Act 1997, State Environmental Planning Policy No 55 and ANZECC guidelines. These results shall be provided to Council or the Principal Certifying Authority prior to the release of the Subdivision Certificate.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.5 – SUBDIVISION IN THE VILLAGE OF SPRING HILL

Standards and conditions that will apply to a Complying Development Certificate for **Subdivision Spring Hill Zone 2 (v)** include:

14 All stormwater shall be collected within the site in a grated stormwater pit and piped to the kerb and gutter on the property frontage, where the surface of the entire lot falls to kerb and gutter on the property frontage. Where the surface of the lot falls away from the kerb and gutter all stormwater from the site shall be collected and piped to Councils stormwater system. Engineering plans for this drainage system shall be submitted to the Accredited Certifier prior to the commencement of any work.

15 Where stormwater crosses land outside the lot it favours, an easement to drain water shall be created over the works. The minimum width of the easement shall be as required in the Orange City Council Development and Subdivision Code.

16 Certification from Advance Energy, stating that electricity and street lighting systems comply with Advance Energy's Networks Division Customer Connection Policy NP11.1, shall be submitted to the Principal Certifying Authority prior to issuing of a Subdivision Certificate.

17 Certification from a licensed telecommunications provider operating within the City, stating that satisfactory arrangements for the supply of telecommunications services to the subdivision have been made, shall be submitted to the Principal Certifying Authority prior to issuing of a Subdivision Certificate.

18 All proposed residential lots shall be a minimum of 600mm above the 1 in 100 year flood level.

19 A minimum 200mm thick gravel vehicular entrance incorporating a pipe culvert shall be constructed to provide access to the proposed lot.

The pipe culvert shall consist of minimum 375mm diameter stormwater pipes and 2 concrete headwalls and be a minimum 5 metres long. Where it is not possible to construct a pipe culvert, due to shallow depth of table drain or the entrance being located on a crest, a 6 metre long by 2 metre wide by 100mm deep concrete dish drain may replace pipe culvert.

The location of this entrance and selection of pipe culvert or dish drain shall be as directed by Orange City Council. The construction shall be as per the requirements of the Orange City Council Development and Subdivision Code.

COMPLYING DEVELOPMENT CONDITIONS

SCHEDULE 3.6 – STRATA SUBDIVISION

Standards and conditions that will apply to a Complying Development Certificate for **Strata Subdivision** include:

1 An Application shall be made to the Principal Certifying Authority for a subdivision certificate upon completion of all works required for the development.

NOTE For Strata Subdivision the works relate to works associated with the completion of building works to which the strata subdivision relates.

2 The development shall be carried out in accordance with the development standards required in Orange Local Environmental Plan 2000 and Development Control plan 2004 as amended, the certified plans and in accordance with all of the conditions in this certificate.

3 The development shall be completed in accordance with all conditions of any development consent or Construction Certificate conditions prior to the issue of the Subdivision Certificate.

4 Any adjustments to existing utility services which are made necessary by this development proceeding, shall be at the full cost of the Developer.

5 Street trees or shrubs shall not be removed or damaged without the consent of Council. Legal proceedings may be instituted by Council against any person who wilfully destroys or damages street trees/shrubs.

6 Where stormwater crosses land outside the lot it favours, an easement to drain water shall be created over the works. The minimum width of the easement shall be as required in the Orange City Council Development and Subdivision Code.

7 Evidence shall be provided to the Principal Certifying Authority that all contributions have been paid to Council prior to the issuing of a subdivision certificate under section 94 of the Act in accordance with the Contributions Plan applying to the land at the time that the application for a Complying Development Certificate was made.

8 A Surveyor’s Certificate or written statement shall be provided to Council or the Principal Certifying Authority, stating that any existing buildings within the boundaries comply in respect of the distances of walls and eaves from the boundaries, prior to the issue of the Subdivision Certificate.

9 A Surveyor's Certificate or written statement shall be provided to the Council or Principal Certifying Authority stating that any existing waste disposal system, sewer, stormwater disposal and water supply are fully contained within the existing house lot boundaries, prior to the issue of the Subdivision Certificate.

16.4 CITY ENTRANCE PRECINCT PLAN

NOTE: THIS PART REPLACED BY CHAPTER 19—REDMOND PLACE PRECINCT ('REDLEAF').

16.5 APPENDIX MAPS (RESIDENTIAL UNIT AREAS; NORTH ORANGE RESIDENTIAL AREAS; WARATAH ESTATE; PLOUGHMANS VALLEY OVERALL PLAN; PLOUGHMANS VALLEY AREA 1; PLOUGHMANS VALLEY AREA 2; PLOUGHMANS VALLEY AREA 2 - OPTION A; PLOUGHMANS VALLEY AREA 3; PLOUGHMANS VALLEY AREA 4); AND LEEDS PARADE CONCEPTUAL SUBDIVISION LAYOUT)

Map – Residential Unit Development in Orange
Map – North Orange Residential Areas
Map - Waratah Estate
Map – Ploughmans Valley Overall Plan
Map – Ploughmans Valley Area 1
Map – Ploughmans Valley Area 2
Map – Ploughmans Valley Area 2 – Option A
Map – Ploughmans Valley Area 3
Map – Ploughmans Valley Area 4
Map - Leeds Parade Conceptual Subdivision Layout

(next pages are Maps)